

their appointment safe and beneficial to all parties interested. And where the application was with a view to having a large fund taken out of Court and invested upon mortgage of lands in Ireland, it was refused (c).

3. **On summons.**—The application to the Court should be by summons, which should be served on the trustees (if any), and also on the tenant for life, if he is not the applicant, but not on any other person unless the Judge so directs (d).

The persons appointed by the Court, and the survivors and survivor of them, while continuing to be trustees or trustee, and until the appointment of new trustees [*552] the personal representatives or *representative for the time being of the last surviving or continuing trustee, are for the purposes of the Act the trustees or trustee of the settlement (a).

Solicitor of tenant for life not appointed trustee.—As the appointment of trustees is required to impose a check upon the extensive powers conferred upon the tenant for life, and sect. 44 contemplates the probability of there being differences between the trustees and the tenant for life, the Court will not appoint any member of the firm of solicitors who act for the tenant for life (b), and *a fortiori* will not appoint the actual tenant for life, or any person who may become tenant for life, to be a trustee of the settlement (c).

Infant's share in unconverted realty.—The share of an infant under the Statute of Distributions in realty which has been improperly allowed to remain unconverted, is settled land within the meaning of the Act, so as to enable the Court, under sect. 38, to appoint trustees to exercise the powers of the Act; but the order appointing the trustees will be made without prejudice to any question as to the interests of the infants (d).

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| (c) <i>Burke v. Gore</i> , 13 L. R. Ir. 367. | Ch. D. 485; <i>Re J. Walker's Trusts</i> , |
| (d) Rules of the Supreme Court | 48 L. T. N. S. 632; 31 W. R. 716. |
| under the Settled Land Act, 1882, | (c) <i>Re Harrop's Trusts</i> , 24 Ch. D. |
| R. R. 2, 4 and 6. | 717. |
| (a) Sect. 38, sub-sect. (2). | (d) <i>Re Wells</i> , 48 L. T. N. S. 859; |
| (b) <i>Re Kemp's Settled Estates</i> , 24 | 31 W. R. 764; but see <i>Re Greenville</i> |
| | Estate, 11 L. R. Ir. 138. |